

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO H.B. 2109
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-914, Arizona Revised Statutes, is amended to
3 read:

4 28-914. Use of portable wireless communication device while
5 driving; prohibition; civil penalty; state
6 preemption; definitions

7 A. Unless a motor vehicle is parked or stopped pursuant to section
8 28-645, subsection A, paragraph 3 or section 28-851, a person may not
9 operate a motor vehicle on a street or highway if the person does [either]
10 ~~[ANY]~~ of the following:

11 1. Physically holds or supports with any part of the person's body
12 either of the following:

13 (a) A portable wireless communication device, except that a person
14 may use a portable wireless communication device with an earpiece,
15 headphone device or device worn on a wrist to conduct a voice-based
16 communication.

17 (b) A stand-alone electronic device.

18 2. Writes, sends or reads any text-based communication, including a
19 text message, AN instant message, AN email or internet data, on a portable
20 wireless communication device or stand-alone electronic device. This
21 paragraph does not apply to either of the following:

22 (a) The use of voice-based communications, including through the
23 use of a portable wireless communication device or stand-alone electronic
24 device, to direct the writing, sending, reading or other communicating of
25 any text-based communication.

26 (b) The use of a portable wireless communication device or
27 stand-alone device when used in a hands-free manner for:

- 1 (i) Navigation of the motor vehicle.
- 2 (ii) Use of a global positioning system.
- 3 (iii) Obtaining motor vehicle information or information related to
- 4 driving a motor vehicle.

5 ~~[3. WATCHES, RECORDS OR STREAMS ON A PORTABLE WIRELESS~~
6 ~~COMMUNICATION DEVICE OR STAND-ALONE ELECTRONIC DEVICE ANY VIDEO-BASED~~
7 ~~DATA, INCLUDING ANY SOCIAL MEDIA WEBSITES OR APPLICATIONS OR ANY~~
8 ~~COMMUNICATION WITH VIDEO CAPACITY, EVEN IF THE PERSON DOES NOT PHYSICALLY~~
9 ~~HOLD OR SUPPORT WITH ANY PART OF THE PERSON'S BODY THE PORTABLE WIRELESS~~
10 ~~COMMUNICATION DEVICE OR STAND-ALONE ELECTRONIC DEVICE.]~~

11 B. This section does not prohibit the operation of a motor vehicle
12 while using a device, including a device that is accessible through an
13 interface that is embedded in a motor vehicle, that allows communication
14 without the use of either of the driver's hands, except to activate or
15 deactivate a function of the device.

16 C. This section does not apply to:

17 1. An operator of an authorized emergency, law enforcement or
18 probation vehicle who uses a portable wireless communication device while
19 acting in an official capacity.

20 2. An operator who is licensed by the federal communications
21 commission while operating a radio frequency device other than a portable
22 wireless communication device.

23 3. An operator who uses a two-way radio or private land mobile
24 radio system, within the meaning of 47 Code of Federal Regulations part
25 90, while in the performance and scope of the operator's work-related
26 duties and who is operating a fleet vehicle or who possesses a commercial
27 driver license.

28 4. An operator who uses a portable wireless communication device
29 either:

30 (a) To report illegal activity or summon emergency help.

31 (b) That was permanently or temporarily affixed to the motor
32 vehicle to relay information in the course of the operator's occupational
33 duties between the operator and either:

34 (i) A dispatcher.

35 (ii) A digital network or software application service.

36 D. ~~Beginning January 1, 2021,~~ A person who violates this section is
37 subject to a civil penalty as follows:

38 1. At least \$75 but not more than \$149 for a first violation.

1 2. ~~At least \$150 but not more than \$250~~ \$400 for a second or
2 subsequent violation.

3 3. AN ADDITIONAL \$150 IF A VIOLATION RESULTS IN AN ACCIDENT WITH A
4 MOTORCYCLE.

5 E. The department shall post a sign at each point at which an
6 interstate highway or United States highway enters into this state that
7 informs an operator that both:

8 1. The use of a portable wireless communication device while
9 operating a motor vehicle is prohibited in this state.

10 2. The operator is subject to a civil penalty if the operator uses
11 a portable wireless communication device in violation of this section
12 while operating a motor vehicle in this state.

13 F. A peace officer who stops a motor vehicle for an alleged
14 violation of this section may not[.]

15 ~~[1.]~~Take possession of or otherwise inspect a portable wireless
16 communication device in the possession of the operator unless otherwise
17 authorized by law.

18 ~~[2. Issue a citation for a violation of this section] before~~
19 ~~January 1, 2021 and may issue only a warning beginning on April 22, 2019~~
20 ~~through December 31, 2020[.]~~

21 G. Except as provided in section 28-3312, a department or agency of
22 this state may not consider a violation of this section for the purpose of
23 determining whether the person's driver license should be suspended or
24 revoked.

25 H. The regulation and use of portable wireless communication
26 devices while operating a motor vehicle are of statewide concern. ~~From~~
27 ~~and after December 31, 2020,~~ The regulation of portable wireless
28 communication devices pursuant to this section and their use while
29 operating a motor vehicle is not subject to further regulation by a
30 county, city, town or other political subdivision of this state. ~~From and~~
31 ~~after December 31, 2020,~~ A regulation by a county, city, town or other
32 political subdivision that violates this subsection, ~~whether enacted~~
33 ~~before or after January 1, 2021,~~ is void.

34 I. For the purposes of this section:

35 1. "Portable wireless communication device":

36 (a) Means a cellular telephone, a portable telephone, a
37 text-messaging device, a personal digital assistant, a stand-alone
38 computer, a global positioning system receiver or a substantially similar

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1 portable wireless device that is used to initiate or receive
2 communication, information or data.

3 (b) Does not include a radio, citizens band radio, citizens band
4 radio hybrid, commercial two-way radio communication device or its
5 functional equivalent, subscription-based emergency communication device,
6 prescribed medical device, amateur or ham radio device or in-vehicle
7 security, navigation or remote diagnostics system.

8 2. "Stand-alone electronic device" means a portable device other
9 than a portable wireless communication device that stores audio or video
10 data files to be retrieved on demand by a user.

11 Enroll and engross to conform

12 Amend title to conform

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